WORKING DRAFT. NOT FOR SIGNATURE. Highlighted items await CHSS confirmation.

Draft v1.8 · Nov 4, 2026 · Center for High School Success · for discussion; not legal advice

Agreement for Services: National 9th Grade Success Accelerator

James's MOU draft: The CHSS Accelerator Agreement for Services draft (Year 0 Readiness + Year 1 Implementation) is the frame. Its Sections One through Four and Seven through Ten are kept in substance, with the conforming edits listed in each Source note; Sections Five and Six are replaced; Appendix A and Exhibits D-1 through D-5 are added; the system specifications an earlier draft carried as Attachment 1 now live in CHSS's technical documentation. **Conversation:** James (10/29): "I need to send them a PDF MOU in full, so they can start to bring it through their legal review process"; asked for one tab with the whole agreement and a downloadable PDF. Luke: no downloadable file that looks final while items are pending; the middle ground is a working draft with pending items highlighted, which needs Jonah's blessing before it goes to a district. **Drafting choice:** Every item still waiting on CHSS is highlighted and names who owns it and its Decisions number. Blanks in brackets without a highlight are filled in per district at signing. **Conversation:** James (10/29, thread): uploaded the Word copy of this page to Google Drive as "CHSS - District Agreement - GOLD" so the team can track changes in one place; Jonah's edits and comments followed on 10/30, and Stand's counsel received that file the same day. 11/2: Jonah's edits and the agreed comment responses are applied here as v1.7. Because the Word file is James's, Luke converted GOLD to a Google Doc in his own Drive with two tabs (the October 30 markup, and v1.7) and shared it with the team; open decisions stay bracketed and highlighted. **Conversation:** Emily and Phil (11/4 call) on Emily's 33-row "Gold Baseline Matrix": Appendix A rewritten in v1.8 to the matrix's generic language, with the exceptions decided on the call (the incident response plan stays mentioned; sixty days and seventy-two hours stay, the latter triggered by a validated and confirmed incident; providers are named by category; Emily's annual assessment replaces the SOC 2 promise). Attachment 1 retired to technical documentation; Columbus's written requirements moved to Exhibit D-5.

> **The agreement of record is the GOLD working Doc in Google Drive:** https://docs.google.com/document/d/17fDxOc23g_yY1-wcpPbiAz-IqIYVKokNtxzxSTB697Q/edit?tab=t.x6vu7j4m1pb. This page is version 1.8: v1.7 (Jonah's October 30 edits and the agreed comment responses) with Appendix A rewritten on November 4 to the technical baseline Emily Phan and Phil Toynton proposed, the decisions from that call applied, and the remaining decisions in brackets and highlighted with their owner and Decisions number. The same text is the "v1.8" tab of that Doc, where tracked changes and comments continue; the October 30 markup and v1.7 are its earlier tabs. The Decisions, Notes, and Changelog tabs record why each change was made. **Working draft for discussion. Not for signature.**

Item	Entry
District/LEA	[District/LEA name]
State	[State]
Year 0 Term	[Start date] through [End date]
Year 1 Term	[Start date] through [End date]

Item	Entry
Participating Schools	See Section Seven

Agreement Overview

> **James's MOU draft:** Kept as drafted. The cover table's cross-reference is corrected from "Section Eight" to "Section Seven," where the list of participating schools appears.

This Agreement for Services ("Agreement") is between the Center for High School Success ("CHSS"), a program of Stand for Children Leadership Center, Inc. ("Organization"), and [District/LEA name] ("District"). CHSS and District may each be referred to as a "Party" and together as the "Parties." **Pending, counsel: confirm the contracting entity and authorized signer (O8)**

The Parties enter into this Agreement to document the Year 0 readiness and Year 1 implementation support provided through the Center for High School Success National 9th Grade Success Accelerator ("Accelerator").

Section One: Vision and Purpose

> **James's MOU draft:** Kept as drafted.

CHSS partners with high schools and districts to improve graduation rates and post-secondary education and career readiness, increase enrollment and per pupil funding, and reduce credit recovery costs by raising 9th Grade On-Track Rates. The Accelerator is designed to help selected districts establish the drivers, leadership, data routines, and school-level practices needed to achieve significant gains in 9th Grade On-Track Rates.

Section Two: Agreement Term and Accelerator Period

> **James's MOU draft:** Kept as drafted, with one sentence added at the end. **District lens:** Auto-renewal is the first item on a California district privacy lead's checklist; a data agreement that renews by silence is a finding in every district review (Decisions, M19).

The Agreement covers two phases:

- **Year 0 Readiness:** [Start date] through [End date]. During this phase, CHSS and District will complete readiness planning; master schedule adjustments to enable 9th grade student cohorting, weekly (preferred) or every-other-week 9th Grade Success Team meetings, and a full-year 9th Grade Seminar (preferred name) or Advisory class; data access and reporting setup as described in Section Six; leadership and staff alignment; 9th Grade Success Team Lead selection; professional learning for district leaders, school leaders, 9th Grade Success Team Leads, 9th Grade Success Team participants, and 9th Grade Seminar teachers.
- **Year 1 Implementation:** [Start date] through [End date]. During this phase, CHSS will provide full implementation support for participating schools, and District and participating

schools will implement the agreed-upon drivers that lead to major 9th Grade On-Track Rate gains and other progress.

A Party may terminate this Agreement before the end of the Term if the other Party materially breaches an obligation under this Agreement and fails to cure the breach to the reasonable satisfaction of the non-breaching Party within ten (10) days after written notice. Because Year 0 and Year 1 services are fully subsidized, termination will not create a refund obligation for District-paid fees under this Agreement.

This Agreement, including its data provisions and Appendix A, does not renew automatically. Continuation of Student Data sharing beyond the Term requires a new written agreement signed by both Parties.

Section Three: Working Agreements and Implementation Commitments

> **James's MOU draft:** Kept as drafted, with two conforming edits: CHSS's seventh commitment now points to Section Five and Appendix A, and the District's two data bullets are combined into one that points to Section Six.

CHSS agrees to:

- Provide Year 0 readiness support, including school-by-school and district readiness assessment, school-by-school goal setting based on the assessments and school-by-school 9th Grade On-Track rate trends, leadership alignment, master schedule and intervention-time planning, school-team design, data readiness, and Year 1 implementation planning.
- Provide foundational professional learning through the 9th Grade Success Institute for participating principals, administrators, 9th Grade Success Team Leads, teachers, and other relevant staff and additional specialized training for Team Leads.
- Provide Year 1 implementation support, including professional learning, job-embedded coaching, quarterly network learning opportunities, data support, and access to CHSS tools, protocols, screeners, technology resources, curricula, and other implementation resources.
- Provide data analytics and visualization support that enables school and district teams to continuously monitor student progress, identify trends and gaps, and translate findings into timely, effective action.
- Conduct regular implementation reviews with school and district leaders to assess implementation, outcomes, barriers, and next steps, including monthly reviews with designated district leaders and participating principals unless the Parties agree to a different cadence in writing.
- Protect Student Data as provided in Section Five and Appendix A, and provide the integration support described in Section 6.9.
- Promptly communicate material implementation concerns, barriers, and risks so the Parties can agree on appropriate corrective action to assure significant gains.

District agrees to:

- Designate a senior district leader with sufficient responsibility and authority to oversee implementation across participating schools.
- Provide a full-year (strongly preferred) or first-semester 9th Grade Seminar or Advisory using CHSS (strongly preferred) or another research-aligned curriculum, and build intervention time into the school day.
- Administer CHSS or comparable belonging and skills screeners, subject to Section 6.7, and provide credit and concept recovery opportunities during the school year.
- Organize 9th grade students into cohorts of approximately 120 to 150 students who share the same core teachers.
- Designate a 9th Grade Success Team Lead for each team and include, at minimum, core 9th grade teachers and appropriate student-support staff on each team. Elective teachers' participation encouraged if schedule permits.
- Provide protected 9th Grade Success Team meeting time during the school day. Weekly meetings are strongly preferred, as they lead to greater impact; meetings at least every other week are required.
- Use CHSS resources to support implementation, including the 9th Grade Success Navigator Platform (required), Kid Talk protocol (required), screeners (required where permitted by state law and District policy), data tools (required), and 9th Grade Seminar Curriculum (strongly preferred).
- Provide Student Data as described in Section Six and Exhibit D-1, through the automated feed described in Exhibit D-2.
- Notify CHSS promptly of material leadership, staffing, scheduling, policy, or data-system changes that may affect implementation.
- Work in good faith with CHSS to address implementation concerns, barriers, and risks and take mutually agreed-upon corrective action to assure significant gains.

Section Four: Statement of Intent Beyond Year 1

> **James's MOU draft:** Kept as drafted.

The Parties acknowledge that Year 0 readiness and Year 1 implementation are intended to establish the foundation for sustained improvement, but the work required to achieve and maintain breakthrough 9th grade outcomes must continue beyond Year 1. District states its intent to continue diligent implementation of the agreed-upon drivers after Year 1 and to work with CHSS in good faith to assess progress and remaining needs and partner to the extent feasible to achieve additional gains and embed effective practices.

No financial commitment beyond Year 1. This statement of intent does not obligate District to purchase Year 2 or Year 3 CHSS services, does not establish a fee for future services, and does not require either Party to enter a future agreement. Any continued services, scope, pricing, subsidies,

and payment obligations shall be documented in a separate written agreement signed by both Parties.

Section Five: Student Data Privacy and Security

> **Drafting choice:** Section Five becomes the short, binding statement of the relationship and points to the appendix (or the NDPA) for the detailed terms, so the body of the agreement stays readable for the academic signers.

5.1 Purpose and relationship

> **FERPA:** School official exception, 34 C.F.R. § 99.31(a)(1)(i)(B): a contractor or other party to whom the institution has outsourced services may receive education records without consent if it performs a service the institution would otherwise use employees for, is under the institution's direct control as to use and maintenance, and is subject to the redisclosure limits of § 99.33(a). **Luke's experience:** On the 10/26 call: "there's a legitimate educational reason for you all to be looking at this data," and the coach already hears student names in every kid-talk today; the agreement "operationalizes" a threshold the district has already crossed. **AFUHSD precedent:** Luke's own test from the 360training review (Jan 2026): a partner is a FERPA school official when it is "an integrated part of learning" that the district facilitates, versus a direct student–vendor relationship like ACT or ASVAB. **AFUHSD precedent:** The sentence on parental consent is deliberate. AFUHSD's GCU priority-acceptance program (2025) had a board-approved agreement but no scalable consent mechanism and produced about one student in year one. Districts should not go looking for a consent process the school official exception doesn't require. **af-dpa:** knowledge/law/ferpa.md (captured 2026-10-26): PTAC adds a fourth element, that the party "has been determined to meet the criteria set forth in the school's or district's annual notification of FERPA rights for being a school official" (§ 99.7(a)(3)(iii)); many districts' annual notices name only employees and board contractors. The last sentence below asks the District to close that gap. The studies exception (§ 99.31(a)(6)) is the alternative basis for evaluation work, but it requires destruction when the study ends, which is why evaluation here rests on de-identified data instead.

The District and the Center for High School Success ("CHSS"), a program of Stand for Children Leadership Center, Inc. ("Organization"), a nonprofit organization exempt under section 501(c)(3) of the Internal Revenue Code, share student data under this Agreement so that CHSS can provide 9th Grade Success coaching, the CHSS Navigator platform, and on-track analytics to the District's participating schools (the "Services").

In providing the Services, CHSS and Organization act as a "school official" with a "legitimate educational interest" under the Family Educational Rights and Privacy Act (FERPA), 34 C.F.R. § 99.31(a)(1)(i)(B). CHSS performs an institutional service for which the District would otherwise use its own employees, is under the District's direct control with respect to the use and maintenance of education records, and will not redisclose student data except as this Agreement permits. The District's disclosure of education records to CHSS for the Services does not require parental consent under FERPA when the conditions in this Section are met; notice and consent requirements that apply to the screeners are governed by Section 6.7. The District will confirm that its annual notification of FERPA rights includes, among the criteria for school officials with a legitimate educational interest, contractors and organizations to which the District has outsourced institutional services.

5.2 Governing privacy terms

> **Lewis County:** A partner district in Missouri has already routed CHSS through its consortium (TEC via MOREnet) and the SDPC Resource Registry to obtain the NDPA. Districts in Arizona, Ohio, California, Massachusetts, Utah, and Missouri have

state NDPA versions; this clause lets each district choose its instrument without renegotiating. **SDPC NDPA:** The NDPA is the Student Data Privacy Consortium's national agreement; state alliances publish versions with a state exhibit. AFUHSD signs vendors onto the Arizona Standard Version 1.2. **District lens:** Counsel's objection to an earlier draft: "If we sign both documents, 'the document the district signed controls' does not tell us which document controls." Now one rule, stated the same way here and in Appendix A.18: the state NDPA controls. **af-dpa:** knowledge/sdpc/exhibit-e-general-offer.md: Exhibit E extends a signed NDPA's privacy terms to any other district in the same state that accepts and delivers notice; it runs three years from the provider's signature. **District lens:** "Section 5.2 allows the NDPA instead of or in addition to Appendix A, but the election form no longer offers 'both.' Which custom commitments survive when we elect the NDPA?" Now one model: Appendix A always applies; the NDPA controls on conflict; the custom commitments are listed as surviving supplements. **Conversation:** James (10/26): "we are going to have to sign their data agreement. There's no negotiation there." The commitment to sign districts' agreements, including the NDPA, has a record. The Exhibit E general offer is referenced here only as something the District may accept where it exists (Decisions, O12). **Luke's decision:** See Decisions, M6.

The CHSS Data Privacy and Security Appendix (Appendix A) applies to all handling of student data under this Agreement in every case. At the District's election, recorded in Exhibit D-3, the Parties will also execute the Student Data Privacy Consortium's National Data Privacy Agreement (NDPA) in the version adopted in the District's state, or, where CHSS has executed the NDPA with another district in the same state and signed a General Offer of Privacy Terms (NDPA Exhibit E), the District may accept that offer and deliver notice of acceptance. Where the NDPA has been executed or Exhibit E accepted, the NDPA and its state exhibits control as to any conflict with Appendix A or with any other provision of this Agreement concerning student data, and Appendix A continues to apply as a supplement for every matter the NDPA does not address, including Sections A.4(d) and (f), A.6, A.8, A.12, A.14, A.15, and A.16. If Appendix A conflicts with the body of this Agreement, Appendix A controls as to student data.

5.3 Definitions

FERPA: De-identified Data tracks 34 C.F.R. § 99.31(b)(1): records may be released without consent after removal of all personally identifiable information, provided the institution has made a reasonable determination that a student's identity is not personally identifiable, taking into account other reasonably available information. **James's MOU draft:** "Confidential Information" is retained from the current Section Five and narrowed to the defined terms below. **Conversation:** "Cohort" implements the 10/23 decision with James: start with ninth grade and "grow the dashboard each year after that" so the cohort can be followed into 10th grade, CTE sequences, and graduation.

- **Student Data** means any information from the District's education records that identifies, or could be used to identify, a student, including the elements listed in Exhibit D-1. Student Data is Confidential Information.
- **Screening Data** means responses and scores from the CHSS Belonging Screener and Skills Screener administered to students at participating schools. Screening Data is Student Data.
- **De-identified Data** means Student Data or Screening Data from which all personally identifiable information has been removed in accordance with 34 C.F.R. § 99.31(b)(1), such that a reasonable person in the school community who does not have personal knowledge of the relevant circumstances could not identify the student.
- **Aggregate Data** means statistics computed across groups of students, with any group smaller than ten students suppressed.
- **Navigator** means the CHSS web platform through which the Services are delivered.

- **9th Grade Success Team** means the District employees at a participating school who are responsible for 9th grade students, as designated by the District.
- **Coach** means the CHSS employee assigned to support a participating school.
- **Cohort** means the 9th grade students enrolled at a participating school in a school year in which the Services are provided.

5.4 Who may see student-level data

Conversation: CHSS leadership decision, 10/27 call (Jonah, Tara, Emily, with Luke): one option, standing access, because coaches already discuss students by name and standing access lets them prepare for meetings. Emily: strike platform-login language, since Navigator serves many personas with different access; bind access "to the school level" and "to the purpose and only for the purpose of" screening and intervention. Emily to send bullets refining the school-level binding. The earlier in-session alternative is retired as a drafted option and survives only as a limit the District may impose by notice. **Luke's decision:** See Decisions, M1, as revised 10/27. **FERPA:** "Disclosure" (34 C.F.R. § 99.3) means permitting access to or release of PII by any means, including oral, written, or electronic; the school official exception (§ 99.31(a)(1)(i)(B)) authorizes the access when its conditions are met, whether or not the recipient holds credentials. § 99.31(a)(1)(ii): the institution must use reasonable methods to ensure school officials access only records in which they have a legitimate educational interest. **District lens:** A privacy officer's first objection to an earlier draft: "You say the coach cannot see student-level data, then arrange for the coach to watch the student-level dashboard on a shared screen. That is still disclosure." And a CTO's: "Somebody must administer Salesforce, troubleshoot imports, and investigate incidents." Both are answered below. **Conversation:** 10/26: Jonah wanted the less intrusive approach with screen-share and one consistent protocol; James: ask for A and let their lawyers say no; Luke: the coach already hears names in every kid talk, so the agreement "operationalizes" a threshold the district has already crossed, and the Phoenix Union experience with Teach For America mentors was six months of fingerprint and onboarding fights. **AFUHSD precedent:** Luke's review of the renewed TFA template (Feb 2026): "as long as it's just the Coach that's going to see the data then it's covering it, acknowledging them as FERPA proxies." One named role, acknowledged as a school official, is the basis for both options. **District lens:** A California district technology and privacy lead (10/27 call) on outside partners who work with students' data: "there's always some kind of an agreement. Nobody gets access without an agreement." County volunteers see student profiles under a special MOU vetted by purchasing and business services; graduation-support partners get data "we pull for them," with no credentials of their own. Identifiable access for an outside partner's staff under an executed agreement is routine there; what varies is only how the access is delivered. The same lead noted that personnel physically in classrooms may also need the district's volunteer clearance or fingerprinting, regardless of the contract.

9th Grade Success Team members designated by the District may view student-level records, including names, for their school, to identify students, plan interventions, and monitor progress.

CHSS program, research, and leadership staff, and Organization staff, may view only De-identified Data and Aggregate Data, except that CHSS technical and security personnel designated under Appendix A.7 may access Student Data on a minimum-necessary basis to administer the platform, resolve data-feed problems, and investigate incidents, with every such access logged.

CHSS coaching staff. The Coach assigned to a participating school, and CHSS staff who directly support that school's screening and intervention work, may access student-level records, including names, for that school only, solely to prepare for and conduct 9th Grade Success Team meetings, screening review, intervention planning, and progress monitoring with that team, and for no other purpose. Each such person is a CHSS employee acting as a school official under Section 5.1, bound by Appendix A, trained annually in FERPA and privacy, under a confidentiality obligation, and subject to the personnel requirements in Appendix A.7. Every access to student-level records is logged under Appendix A.7. The District may limit or revoke any individual's access at any time by

written notice, including limiting a Coach to viewing student-level records only during meetings with the school's 9th Grade Success Team. **Pending, Emily: school-level access bullets may refine this paragraph (O17)**

5.5 Permitted use and restrictions

> **James's MOU draft:** Builds on the current Section Five "Permitted Use and Restrictions" (use solely to perform services and evaluation; access limited to those performing work; no third-party disclosure). **SDPC NDPA:** Mirrors NDPA Article IV prohibitions: no sale, no targeted advertising, no building a profile except to further the educational purpose. **Conversation:** James (10/23): Stand is both a 501(c)(3) and a 501(c)(4), "so there doesn't actually have to be something wrong for people to raise a stink." The advocacy clause answers the question before a board member asks it. **Drafting choice:** The evaluation sentence is where the current draft's "Whenever practicable, CHSS will use aggregated or de-identified data" becomes a rule rather than an aspiration: identifiable data for the Services only; de-identified and aggregate data for evaluation.

CHSS and Organization will use Student Data solely to provide the Services to the District. CHSS and Organization will not: (a) sell, rent, or trade Student Data; (b) use Student Data for targeted advertising or marketing to students, parents, or staff; (c) build a profile of a student for any purpose other than the Services; (d) use Student Data in any advocacy, lobbying, political, or fundraising activity of Organization or any affiliated entity, including any entity organized under section 501(c)(4); or (e) disclose Student Data to any third party other than a subprocessor listed in Appendix A, except as required by law.

CHSS may create and retain De-identified Data and Aggregate Data to evaluate and improve the program, including analyzing Cohort outcomes over time. CHSS will not attempt to re-identify any student and will not publish any result that could identify a student or, without the District's written consent, the District.

5.6 Return and destruction

> **Columbus City DSA:** "Company shall destroy or return to the District all educational records created, received, or maintained pursuant to the contract/agreement within ninety days" of termination. Term is co-terminus with the contract and ends only when data is destroyed or returned. **SDPC NDPA:** Article IV "Disposition of Data": dispose of or return data within sixty days of written request on an agreed schedule; the duty does not extend to de-identified data; the LEA may use the Directive for Disposition of Data form (Exhibit D) with no further notice. **AFUHSD precedent:** Luke rejected "may retain copies in the ordinary course of business" in a 2026 dual-enrollment review and pasted the NDPA disposition clause in its place. **James's MOU draft:** Replaces the current draft's three-year post-termination retention, which no partner district on the call list will accept. **Conversation:** James (10/23): CHSS is "perfectly okay to delete the de-identified student data" but wants to keep that "Agua Fria High School went from 60% on track to 72%." Luke: "That's fine. That's a different thing." **af-dpa:** knowledge/sdpc/article-crosswalk-v1-2-to-v2-1.md: NDPA v1.2 IV.6 is sixty days from a written request and, at termination, "after providing the LEA with reasonable prior notice" with no deadline; v2 4.6 is "within sixty (60) days of termination." Sixty days at termination is used here so the clause satisfies v2, Columbus (ninety), and the stricter districts (Beaverton: sixty days from expiration). knowledge/practice/vendor-negotiation.md: backups "expire on the vendor's documented rotation," with "an outside date" and "certification when the outside date passes."

On the District's written directive at any time, which may be given on the form in Exhibit D-4 or, where the NDPA applies, on NDPA Exhibit D, CHSS and Organization will return or destroy the Student Data specified within sixty days, on a schedule agreed with the District. Within sixty days after this Agreement ends, CHSS and Organization will destroy or return to the District all

Student Data and Screening Data, including copies held by subprocessors, and will certify destruction in writing; copies in encrypted backups expire on the documented rotation, not to exceed ninety days, are never restored to production, and are certified as expired when that date passes. De-identified Data and Aggregate Data are not subject to this subsection.

5.7 Records of this Agreement

> **AFUHSD precedent:** ASU-Helios consortium thread (Mar 2026): the district could not locate its own executed DSA; a partner that supplies an indexed executed copy and a renewal reminder removes a real pain point. **Luke's experience:** AFUHSD's own agreement inventory lives in the SDPC registry and BoardDocs; most districts have nothing comparable for non-vendor partners.

CHSS will provide the District an executed copy of this Agreement and Appendix A within ten business days of signature, and written notice at least ninety days before this Agreement or Appendix A expires.

Section Six: Data Access and Sharing

> **James's MOU draft:** Keeps the current Section Six's purpose sentence and liaison block; replaces the "de-identified individual student data" framing, the element list, the cadence, and the delivery language. **Conversation:** Luke (10/26): the district's technical and privacy people must be at the table early, "so that they're not caught with their pants down six months later when they're like, okay, now send the data to Stand."

Successful implementation requires timely access to actionable data that allows 9th Grade Success Teams, school leaders, the District, and CHSS to identify students needing immediate support, monitor intervention progress and effectiveness, identify trends that indicate the need for additional Tier 1 supports, and assess the effectiveness of those supports.

6.1 District contacts and onboarding

> **Conversation:** 10/23 (James and Luke) and 10/26 (all): verbal yeses came from superintendents and heads of academics, not CTOs; James met one CTO so far. The contact designation and the onboarding call are the mechanism that forces the CTO/privacy conversation before data moves. **James's MOU draft:** The current draft already has a "District Data/IT Liaison" block; this subsection makes naming that person a dated obligation and adds the privacy contact.

The District designates, in Exhibit D-3 at the time it accepts a place in the Accelerator, (a) a technical contact responsible for the data feed, (b) a privacy contact (data privacy officer, technology director, or counsel) responsible for Appendix A, and (c) a program contact for each participating school, and will confirm or replace them within fifteen business days after this Agreement is executed. CHSS will schedule an onboarding call that includes the technical and privacy contacts before this Agreement is routed for signature, and no Student Data is transferred before execution.

6.2 Data provided by the District

> **James's MOU draft:** The current element list (demographics, course enrollment and master schedule, credits, course performance and GPA, attendance, behavior and discipline "as permitted," summer school, other agreed indicators) is kept, re-sorted into required and optional in Exhibit D-1. **Conversation:** Tara (10/19): course performance, GPA, credit accrual,

attendance; behavior "we typically don't get." James (10/19): the three Synergy reports a school actually runs are GRD 401, GRD 402, and the MST transcript. **Emily's email:** "Right sizing our data request: what is the minimum practical dataset we should request initially versus additional data we might pursue later?" Required core is kept small; everything else is optional. **AFUHSD precedent:** In AFUHSD's feeder-district DSA (May 2025) the data team struck an element the district could not produce accurately. Expect district data teams to do the same; a short required list survives that review.

The District will provide the elements marked Required in Exhibit D-1 for each Cohort, and may provide the elements marked Optional at its discretion. The District will provide data as it exists in its student information system; CHSS will report apparent errors to the technical contact and will not alter source data.

6.3 Scope of students and years

Conversation: James (10/23): "let's do it in ninth grade, but grow the dashboard each year after that. So when they become 10th graders, we continue importing their data." Luke: "it is an arbitrary difference" technically; the value is in following the cohort. **Drafting choice:** Written so a district that balks can strike the second sentence and keep a ninth-grade-only feed without touching anything else.

Student Data covers all 9th grade students at participating schools. For each Cohort, the District will continue to provide the Required elements for those students in subsequent school years through graduation or exit, for as long as this Agreement is in effect, so that student outcomes can be followed over time.

6.4 Student identifier

James's collateral: "Records are matched using a consistent unique student identifier." **Emily's architecture:** The platform's identity-matching step lists district ID, state ID, and "probabilistic matching." A deterministic ID in every feed makes probabilistic matching unnecessary for linking. **Luke's experience:** Two de-identification methods used at AFUHSD (10/19 call): a deterministic transformation of the student ID, or a growing mapping table from hashed to random IDs. Either produces a stable pseudonymous identifier a district can send instead of its real ID. **af-dpa:** agents/operational-context.md: "Pseudonymous or 'anonymized' student-level rows can remain linkable student data, especially when the same student is tracked over time." The last sentence below says so, which keeps a pseudonymous feed inside the agreement's protections rather than outside them.

Each record will include the District's student identifier (and the state student identifier where available) so that records can be matched consistently across feeds and years. A District that prefers not to send its student identifier may instead send a stable pseudonymous identifier that it generates and maintains, provided the same identifier is used in every feed. Records carrying a pseudonymous identifier remain Student Data under this Agreement.

6.5 Delivery method and cadence

Emily's architecture: v1 of the CHSS data platform ingests periodic files (Excel, CSV, TXT) by SFTP or secure upload, "quarterly/semester or more frequent." No vendor API in v1. **Conversation:** Luke's ranking (10/19): SIS vendor feed direct to CHSS first, district SFTP second, Clever/ClassLink last ("this isn't OneRoster data"). Luke (10/23): a menu from "run these five reports and a Python cleanup script" up to a nightly automated export. **James's MOU draft:** The current draft's "within two weeks after the end of each marking period" survives only as the end-of-year and summer-school rule; weekly is the Year 1 standard because the coaching model needs Friday's data on Tuesday. **Conversation:** Jonah (GOLD, 10/30): the automated feed "should be the only option," with the reasons stated; "I do not want to offer this option [scheduled upload] to any Accelerator district." Applied in v1.7; the upload capability remains an unadvertised fallback (Decisions, M22). **District**

lens: "Is weekly delivery required, preferred, or only the Tier 1 target?" One rule now: weekly once live; Tier 2 is a dated interim exception with an approved cadence. Pending CHSS confirmation (Decisions, O15). **James's MOU draft:** The current Section Three already obligates the District to "make grades, attendance, and other agreed-upon key indicators available at least weekly." This subsection is how that happens.

The District provides Student Data through an automated feed from its student information system or data warehouse, in one of the two forms described in Exhibit D-2, set up before the feed goes live. CHSS uses the automated feed with every District because it is the safer transfer, gives each 9th Grade Success Team current data at every meeting, which drives greater 9th Grade On-Track Rate gains, takes the least District staff and Team Lead time, and lets CHSS work efficiently, which enables CHSS to offer the District lower-cost services in Year 2 and Year 3. Once the feed is live for Year 1, the District will provide updates weekly during the school year, and a final update within two weeks after the end of the school year and of summer school.

6.6 Changes affecting the feed

Luke's experience: Running district feeds to outside partners: SIS vendor changes, grading-scale changes, and term-structure changes are what break them. **James's MOU draft:** Extends the current Section Three notice obligation ("data-system changes that may affect implementation") with a lead time.

The District will notify CHSS at least thirty days before a change in student information system, grading scale, or term structure that would affect the feed.

6.7 Screeners

PPRA: Protection of Pupil Rights Amendment, 20 U.S.C. § 1232h: surveys funded or administered through a school that touch protected categories (including psychological problems and certain attitudes) require parental notice and, in some cases, opt-out or consent. A belonging screener can reach those categories. **Emily's email:** Navigator must "explicitly cover the Belonging and Skills screeners we administer, including the collection, storage, analysis, and use of student-level screening data." **James's MOU draft:** The current Section Three already obligates the District to "administer CHSS or comparable belonging and skills screeners." This subsection makes the District the approver and notice-giver, which is where PPRA puts the responsibility. **af-dpa:** knowledge/law/ppra-cipa-other-federal.md, quoting the Department of Education's Student Privacy Policy Office letter of Aug 26, 2026: when schools "use behavioral health screeners that probe students' emotional or psychological states, they must ensure that written parental consent is obtained prior to administration," and "the opt-out provisions in PPRA do not apply as a way of securing parental consent." Arizona A.R.S. § 15-117 adds fourteen categories and seven days' advance notice. **State law:** Arizona A.R.S. § 15-104 requires prior written parental consent for mental health screening in schools, and § 15-117 exempts § 15-104 screenings from its separate survey regime. Whether the Belonging Screener is a mental health screening is a classification question for counsel, item by item. **District lens:** "I cannot approve 'notice, opt-out, or consent' without reviewing the actual instruments." The clause now makes collection contingent on the District's written authorization and certification, so the review happens before any student answers a question. **Luke's decision:** Tara classifies program need; counsel classifies consent (Decisions, O6). The decline sentence is new: Arizona districts cannot administer emotional-wellness surveys at all, so the Services must be able to run without the Belonging Screener. **District lens:** A California district technology and privacy lead (10/27 call): California districts run Panorama wellness surveys several times a year and now give parents notice on gender-identity items; some districts also cover third-party consent through pre-permission language in annual online registration. Arizona, by contrast, bars asking students how they feel. The same instrument is routine in one state and prohibited in another, which is why the District, not CHSS, decides.

The District will review the full content of the CHSS Belonging Screener and the Skills Screener, item by item, before either is administered, and will determine what parent notice, opt-out, or

prior written consent is required by District policy, by the Protection of Pupil Rights Amendment (20 U.S.C. § 1232h), and by state law (in Arizona, A.R.S. §§ 15-104 and 15-117). CHSS will not open collection at a participating school until the District has authorized the instruments in writing and certified that any required notice has been given and any required consent is on file. [The District administers the screeners through 9th Grade Seminar teachers or other District staff it designates.] **Pending, Tara: who administers the screeners (O23)** CHSS will not add or change questions without the District's written approval and will provide each versioned instrument for that purpose. Where state law or District policy restricts or prohibits a screener's subject matter, the District may decline a screener in whole or in part, and the Services continue without it. Screening Data is Student Data for all purposes of this Agreement. **Pending, Tara and counsel: screener instruments and consent classification (O6)**

6.8 Navigator users

> **SDPC NDPA:** Districts remain responsible for their own users' credentials and for prompt notice of role changes; the NDPA places account-management duties on the LEA for its staff. **Columbus City DSA:** District duties include "take reasonable precautions to secure usernames, passwords, and any other means of gaining access to the service."

The District will designate which school leaders and 9th Grade Success Team members receive Navigator logins and will notify CHSS within five business days when a user's role changes or ends. District users are responsible for safeguarding their credentials.

6.9 CHSS integration support

> **Conversation:** Luke (10/26): "Let's send, Luke will have a conversation with your data nerds for two calls, set up a Python system that can clean and refine your data and send it via SFTP." James (10/26): "it's almost like another form of coaching we're going to offer." **Luke's experience:** Monitoring: a daily failure report is what makes an automated feed trustworthy; the district should never be the one to notice a missed transfer. **District lens:** A data manager's read of "two working sessions": "I still do not know whether support ends before the feed works." Support now runs to acceptance, with maintenance when the SIS, grading scale, or terms change. Cost is an open decision (O11).

CHSS will provide technical assistance to the District's technical contact to establish the data feed, including the file specification and data dictionary, SIS-specific report instructions where CHSS has them, mapping of the District's exports to the specification, a cleanup script where needed, and working sessions until the feed passes the acceptance test in Exhibit D-3. After acceptance, CHSS will provide assistance when the District's student information system, grading scale, or term structure changes. CHSS will monitor the feed, notify the technical contact within one business day when a transfer fails or expected data is missing, and provide a validation report for each load that distinguishes rejected files, rejected rows, and warnings. **Pending, Emily: staffing and hours for support through acceptance (O11)**

6.10 Timeline

> **Conversation:** Jonah (10/26): starting in January "gives us the four or five months of let's get this set up before students start." James (10/23): "when we come to them in April and say, hey, it's time to engineer this SIS integration." Winners announced Dec 15; Columbus City needs about three months for board approval. **James's MOU draft:** Year 0 is the readiness period; "data access and reporting setup" is listed among Year 0 activities. Year 1 is implementation. **District lens:**

> Counsel reads a December pilot next to a three-month board calendar and concludes data is being asked for before approval. The timeline now says what the cohort is actually committing to: readiness in Year 0, live data in Year 1. **Luke's decision:** No Student Data moves before signature; a spring test load is optional and follows signature; live data begins with Year 1 instruction (August 2027 for the January cohort). The December Navigator pilot is outside this Agreement (Decisions, O1).

No Student Data is transferred before this Agreement and Appendix A (or the NDPA) are executed. During Year 0 the District will name its contacts, confirm its feed method, and complete the mapping and acceptance test in Exhibit D-3; a test load of current-year data may be made after execution to validate the feed. The feed goes live for the 9th grade Cohort no later than [the first day of Year 1 instruction], and the Parties will complete acceptance by [thirty days before that date].

District Data/IT Liaison: [TO BE COMPLETED] · **Privacy contact:** [TO BE COMPLETED]

Section Seven: Participating Schools and Cost of Services

> **James's MOU draft:** Kept as drafted. Renumbering note: James's draft labels this Section Seven while its cover table pointed to Section Eight; the cover table is corrected.

CHSS will provide the Year 0 and Year 1 services described in this Agreement to the participating schools listed below. Year 0 and Year 1 services are fully subsidized; the amount due from District under this Agreement is $0.

Participating High School	9th Grade Enrollment	District Cost for Year 0 + Year 1
[School name]	[Enrollment]	$0
[School name]	[Enrollment]	$0
[School name]	[Enrollment]	$0
Total District cost		**$0**

Any travel subsidy, pass-through cost, or other expense not expressly included in this Agreement must be approved in writing by both Parties before it is incurred.

Section Eight: Disclaimer of Warranties and Liability; Hold Harmless

> **James's MOU draft:** Kept as drafted, with two additions: the cyber-insurance sentence, and a carve-out reconciling the liability cap with Appendix A's breach and confidentiality promises. **af-dpa:** knowledge/practice/dpa-review-checklist.md: district practice is to "carve out data breach, confidentiality and indemnity obligations, or set a breach super-cap." The NDPA has no liability or indemnity clause of its own. **District lens:** "You promise breach costs and substantial insurance, but I cannot tell whether the main agreement caps those obligations." (Decisions, O2.) **Columbus City DSA:** Cyber liability of at least $1,000,000 is required; $2,000,000 is drafted to meet the higher tier district practice applies to SIS data (Decisions, O7).

DISTRICT ACKNOWLEDGES THAT SERVICES PROVIDED UNDER THIS AGREEMENT ARE PROVIDED ON AN "AS IS" OR "AS AVAILABLE" BASIS. ORGANIZATION MAKES NO

WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, IN CONNECTION WITH THE SERVICES.

Except as specifically provided in this Agreement or otherwise required by law, Organization's officers, directors, employees, agents, and contractors will not be liable for indirect, incidental, special, or consequential damages arising from the services. In no event will the liability of Organization and its affiliates, individually or combined, exceed applicable liability insurance proceeds. The limitations in this Section do not apply to Organization's obligations under Appendix A, Sections A.4, A.8, and A.10, or to either Party's breach of confidentiality. **Pending, Jonah and counsel: whether these obligations are uncapped or subject to a stated super-cap, and the amount (O2)**

Each Party agrees to be responsible for its own wrongful or negligent acts or omissions, and those of its officers, agents, or employees, to the extent required by law. Each Party will maintain reasonable liability insurance coverage through commercial insurance or a reasonable self-insurance mechanism and will provide evidence of such coverage upon reasonable request. Upon reasonable request, CHSS will provide a certificate of insurance or other documentation evidencing applicable coverage, including any applicable cybersecurity or data-security coverage. Organization maintains cyber liability insurance of not less than $2,000,000 per claim, as further described in Appendix A. **Pending, Demian and counsel: confirm limits against Stand's certificate (O7)**

Section Nine: Additional Terms

> **James's MOU draft:** Kept as drafted, with the District's privacy contact added as a required notice recipient for matters under Appendix A.

Assignment. Neither Party may assign its rights or obligations under this Agreement without the other Party's written consent.

Relationship of the Parties. Nothing in this Agreement creates an employer-employee relationship, joint venture, legal partnership, or principal-agent relationship between the Parties.

Force Majeure. Neither Party is responsible for delay or failure caused by events beyond its reasonable control.

Sole Agreement. This Agreement, including its Appendix and Exhibits, constitutes the complete agreement between the Parties regarding its subject matter and may be modified only in a writing signed by both Parties.

Waiver. A Party's failure to enforce a provision does not waive that provision or any other provision.

Severability. If a provision is unenforceable, it will be reformed to the maximum extent permitted by law or severed, and the remaining provisions will remain in effect.

Counterparts and Electronic Signatures. This Agreement may be signed in counterparts and by electronic signature, each of which will be treated as an original.

Notices. Formal notices under this Agreement will be sent to the contacts identified below or to an updated contact provided in writing. Notices concerning Student Data or Appendix A will also be sent to the District's privacy contact and to CHSS's Privacy Officer named in Exhibit D-3.

Section Ten: Signatures

> **James's MOU draft:** Kept as drafted.

The authorized representatives below acknowledge that they have read, understand, and agree to the terms of this Agreement.

District / LEA	
Authorized signature	Date
Printed name	Title

Center for High School Success / Organization	
Authorized signature	Date
Printed name	Title

Appendix A: Data Privacy and Security

> **SDPC NDPA:** Section order follows the NDPA's articles (purpose and FERPA designation; data ownership and authorized access; duties of the LEA; duties of the provider; data provisions including security, breach, disposition, and advertising limits; general offer; miscellaneous) so a district privacy officer recognizes the shape immediately. **Luke's experience:** AFUHSD's baseline is the Arizona NDPA Standard Version 1.2 with Exhibit G, which carries Arizona contract requirements and the AI questionnaire Luke co-wrote with the privacy leads from Mesa and Deer Valley.

A.1 Definitions

> **Drafting choice:** Defined terms are the same as in Agreement Sections Five and Six so the two documents never drift.

Terms defined in Sections Five and Six (Student Data, Screening Data, De-identified Data, Aggregate Data, Navigator, 9th Grade Success Team, Coach, Cohort) have the same meaning here. **Subprocessor** means a third party that hosts or processes Student Data on CHSS's behalf.

A.2 Purpose and legal basis

> **FERPA:** 34 C.F.R. § 99.31(a)(1)(i)(B) (school official exception) and § 99.33 (limits on redisclosure). **PPRA:** 20 U.S.C. § 1232h applies to the screeners CHSS administers through schools. **COPPA:** 15 U.S.C. §§ 6501–6506; Columbus City's DSA requires a COPPA warranty for any data collected directly from students. Navigator is not student-facing, but screener administration may be, so the commitment is stated "to the extent it applies." **Columbus City DSA:** "agrees that it shall comply with all applicable Ohio laws ... regarding the collection, use and protection of data as if it were the District." The "as if CHSS were the District" standard is adopted for every state. **State law:** California Education Code § 49073.1(b)(8)

requires "a description of how the district and the third party will jointly ensure compliance with" FERPA. A California colleague shared the CETPA/Fagen Friedman & Fulfrost AB 1584 checklist (10/27), which lists the statute's nine required contract terms; the joint-compliance paragraph is written to that term. Decisions, M21.

CHSS receives Student Data solely to provide the Services described in the Agreement. The District designates CHSS as a school official with a legitimate educational interest under 34 C.F.R. § 99.31(a)(1)(i)(B). CHSS is under the District's direct control with respect to the use and maintenance of education records and is subject to the redisclosure limits of 34 C.F.R. § 99.33. CHSS will comply with FERPA; with the Protection of Pupil Rights Amendment (20 U.S.C. § 1232h) as it applies to screeners; with the Children's Online Privacy Protection Act (15 U.S.C. §§ 6501–6506) to the extent it applies; and with the student privacy laws of the District's state listed in the State Exhibit, as if CHSS were the District.

Joint FERPA compliance. The District and CHSS ensure compliance with FERPA together, as follows: the District includes contractors performing institutional services among the school officials named in its annual FERPA notification and determines which 9th Grade Success Team members may access Student Data; CHSS limits its use of Student Data to the Services, restricts access to the roles in Section 5.4 and A.7, trains every person with access, refrains from redisclosure except as this Appendix permits, routes parent and eligible-student requests to the District under A.11, reports any unauthorized disclosure under A.8, and destroys Student Data under A.10. Either party may raise a compliance concern with the other's privacy contact, and the parties will resolve it before further data moves.

A.3 Ownership and control

Columbus City DSA: "All information, data, and other content transmitted by the District ... will remain the sole property of the District. The District will retain exclusive control over student data, including determining who may access data and how it may be used." **James's collateral:** "Your student data remains your district's property, and your district decides who can see it."

All Student Data and Screening Data, and all records CHSS creates or receives on the District's behalf, are and remain the property of the District. The District retains exclusive control over its Student Data, including who may access it and for what purposes. CHSS acquires no rights in Student Data other than the limited license to use it to provide the Services.

A.4 Authorized and prohibited uses

SDPC NDPA: Article IV prohibitions (no sale; no targeted advertising; no profiling beyond the educational purpose) and Article V on advertising limitations. **Columbus City DSA:** "Company shall not use educational records for any commercial purpose outside the scope of the agreement, including but not limited to marketing or advertising to students or parents. Company agrees not to sell, share, or disseminate educational records." **Conversation:** The 501(c)(4) clause (d) comes from James's 10/23 flag that Stand's dual structure invites questions "even when nothing is wrong." **af-dpa:** knowledge/law/coppa.md and arizona.md: COPPA's "operator" definition excludes nonprofits exempt from § 5 of the FTC Act, and A.R.S. § 15-1046 reaches operators of services "designed and marketed for school purposes." A coaching nonprofit may sit outside both, so "the contract is the only enforcement." That is the reason clause (d) and clause (f) are written in rather than left to statute. NDPA v1.2 IV.2 limits use to "the Services outlined in Exhibit A or stated in the Service Agreement"; v2 4.2 closes that gap with "or as instructed by the LEA," which (a) through (f) mirror. **af-dpa:** agents/exhibit-h-rider-draft.md, term 6 ("Partner and evaluator visibility"): "Where the approved service shares data with a program partner, evaluator,

certifying body or sponsor, Provider will name the recipient and the data shared ... no other third-party visibility is permitted." Marked in the repo as an agent draft not yet adopted by the Director; reused here as clause (f) and restated in A.6. **District lens:** "If we object to a subprocessor and your team cannot resolve it, the new provider still takes effect." An earlier draft answered this with a notice-and-objection clause in A.6 (Decisions, M12); removed 11/4 as beyond what districts ask (M25).

CHSS will use Student Data only to provide the Services and as instructed by the District. CHSS will not: (a) sell, rent, or trade Student Data; (b) use Student Data for targeted advertising or marketing to students, parents, or staff; (c) build a profile of a student for any purpose other than the Services; (d) use Student Data in any advocacy, lobbying, political, or fundraising activity of Stand for Children Leadership Center, Inc. or any affiliated entity, including any entity organized under section 501(c)(4); (e) disclose Student Data to any third party other than a Subprocessor under A.6, except as required by law and, where lawful, with prior notice to the District; or (f) share Student Data with any program partner, evaluator, funder, certifying body, or sponsor unless the recipient and the data shared are named in Exhibit D-3 and approved by the District in writing.

A.5 Data minimization

SDPC NDPA: The NDPA's Exhibit B is a checklist of data elements the provider collects; this clause ties CHSS to the equivalent list in Agreement Exhibit D-1. **Emily's email:** "Asking for too much could create unnecessary objections and delays." **Columbus City DSA:** Service "will not require a student to disclose more information than is reasonably necessary." **af-dpa:** agents/exhibit-h-rider-draft.md, term 3 (data minimization): the provider "will not require Social Security numbers, government identification numbers, payment information, health or disability records" unless listed. Adopted here; IEP/504 status stays an optional element the District may elect. **State law:** California Education Code § 49073.1(b)(2) requires a description of how pupils retain control of pupil-generated content "if applicable." Navigator holds none, and the clause says so rather than leaving a California reviewer to infer it.

CHSS will collect only the elements listed in Exhibit D-1 and will not require the District to provide more data than is reasonably necessary to deliver the Services. CHSS will not request Social Security numbers, government identification numbers, payment information, or health records, and will receive disability-related status only where the District elects to provide it under Exhibit D-1. The Services do not collect, create, or store pupil-generated content (essays, portfolios, creative work, or similar); if a future feature does, CHSS will provide the District a description of how students retain possession and control of that content and may transfer it to a personal account before the feature is enabled. Changes to the element list require the District's written agreement.

A.6 Subprocessors

Emily's architecture: The CHSS Data Platform diagram: Microsoft Azure / Fabric (data lake, SQL warehouse), Azure API Management, Salesforce Experience Cloud as Navigator (with CRM Analytics and Lightning components), Power BI for research and program analytics, and AI-assisted mapping, validation, and intervention recommendations. **SDPC NDPA:** Article IV requires the provider to flow down the agreement's obligations to subprocessors and to maintain a list available to the LEA. **Luke's experience:** From the Rescue Ready review (2026): the DPA goes with whoever actually hosts the data. Naming the platforms is what lets a district CTO stop asking; after 11/4 that happens in the technical documentation, provided on request, not in the agreement.

CHSS delivers the Services on industry-leading cloud hosting and data-platform providers, such as Microsoft or Google, and a commercial customer-relationship platform, each operating in the United States. CHSS engages only Subprocessors that maintain data privacy and security protections no less stringent than those this Appendix requires, under their standard data protection agreements or other written terms. CHSS maintains a current list of its Subprocessors, the function each performs, and the data each receives in its technical documentation, and on request under A.13 will describe them to the District in sufficient detail for the District's review.

CHSS does not share Student Data with any program partner, evaluator, funder, certifying body, or sponsor. Any such recipient must be named in Exhibit D-3 with the data to be shared and approved by the District in writing before any disclosure.

A.7 Security program

> **Columbus City DSA:** Sections 5 through 8: encrypted storage in monitored data centers; no storage outside the United States; passwords not visible to employees, salted hashes, SSL; patches "within one week of release"; anti-virus; firewall and DMZ; "third party audits of security operations are conducted annually"; access control lists; "the identity of all persons having access to student data is documented and access is logged"; employees bound by FERPA. **San Diego CCAP:** "All staff involved in the data sharing process will be required to sign a confidentiality agreement"; passwords changed frequently; data kept in secure facilities. **SDPC NDPA:** Article V and Exhibit F (data security requirements) call for a written security program, access controls, encryption, training, and an incident response plan. **Conversation:** Luke and Jonah (10/26) on background checks: Phoenix Union required fingerprinting and onboarding of Teach For America mentors who were entirely virtual, which stalled the program for years. Stating a background check as a CHSS commitment removes one reason for a district to add its own. **af-dpa:** knowledge/practice/dpa-review-checklist.md: "TLS 1.2+ in transit, AES-256 or equivalent at rest, including backups"; "MFA on vendor support access"; SOC 2 "does not test application code, does not require penetration testing," which is why the pen test is a separate line. NDPA v1.2 IV.3 binds "each employee or agent with access to Student Data" to confidentiality. The repo records no district position on background checks; that line is a drafting choice from the 10/26 discussion. **State law:** California Education Code § 49073.1(b)(5): the contract must describe the third party's actions "including the designation and training of responsible individuals" to ensure security and confidentiality. The responsible-individuals bullet names the two roles; Exhibit D-3 carries the names. **Conversation:** Emily and Phil (11/4): the matrix's generic language adopted for framework, access, authentication, encryption, transfer, logging, patching, and endpoints (G-10, G-13 to G-22); named versions, protocols, network architecture, development practice, and the fixed clocks (one business day, seven days, twelve months) move to the technical documentation. Phil: CHSS assesses itself against CIS Controls v8.1 Implementation Group 1, which is on the NDPA's Exhibit F list. The incident response and disaster recovery plans stay mentioned at Luke's suggestion (G-26): cheap, true, and asked for by New York and the NDPA. **Needs CHSS confirmation:** Every control in this section is one CHSS asserts is true on signature. The specific controls that implement them are confirmed line by line in the technical documentation (O4); background checks and training for all staff with access, coaches included, remain with Demian and James (O5). **District lens:** "Are these implemented controls or your roadmap?" and "Somebody must administer Salesforce, troubleshoot imports, and investigate incidents." The technical-personnel role answers the second; the confirmation gate answers the first.

CHSS maintains an information security program aligned with a recognized cybersecurity framework appropriate to the sensitivity of Student Data, with administrative, technical, and physical safeguards. Under that program CHSS:

- **Access.** Limits access to Student Data to authorized personnel as necessary to perform the Services, documents who has access, and removes access promptly when it is no longer authorized. A small set of CHSS technical staff may access Student Data to administer the platform, resolve data-feed problems, and investigate incidents, on a minimum-necessary basis,

with each access logged; no other CHSS program, research, or leadership staff access identifiable Student Data.

- **Authentication.** Implements risk-appropriate authentication safeguards, including multi-factor authentication for privileged and CHSS-managed access.
- **Encryption and transfer.** Encrypts Student Data in transit and at rest, transfers it only by secure, encrypted methods, and never by unencrypted email.
- **Logging.** Maintains security-relevant access and administrative logs for at least ninety days, or longer where law requires, and provides log data relevant to an incident involving the District's Student Data on written request.
- **Vulnerabilities and endpoints.** Evaluates, validates, and applies security updates based on vulnerability severity, system risk, and operational impact, and maintains endpoint protection on devices and systems based on security risk.
- **Incident response.** Maintains and tests an incident response plan and a disaster recovery plan.
- **Responsible individuals.** Designates a privacy officer, responsible for compliance with this Appendix and for notices under A.8, and a security officer, responsible for the security program, both named in Exhibit D-3 and reachable by the District's privacy contact; CHSS notifies the District within ten business days when either designation changes.
- **Personnel.** Limits access to Student Data to personnel, including Coaches, who have completed a background check, are bound by confidentiality obligations, and have received privacy and security training before access and annually. **Pending, Demian and James: confirm background checks and training are current practice (O5)**

The systems, controls, and procedures that implement this program are described in CHSS's technical documentation, which CHSS keeps current and provides to the District under A.13. Requirements a District's own agreement adds in writing are set out in that District's entry in Exhibit D-5.

A.8 Breach notification

Columbus City DSA: Breach section lists the response steps (assess, communicate, contain, classify severity, protect evidence, notify external agencies, recover, document, assess cost, review, update policies) and gives the District the right to request logs; Ohio R.C. 1347.12 governs notification to affected persons. **SDPC NDPA:** Article V requires notice to the LEA of any security breach, cooperation in the investigation, and provider responsibility for its own costs; the national form's notice window is the one most state versions keep. **Luke's experience:** 10/19: "if you have a leak, you'll tell us, if we have a leak, we'll tell you ... those things make us feel a lot more comfortable." Districts do not want to learn of a breach from the press. **State law:** California Education Code § 49073.1(b)(6) requires "a description of the procedures for notifying the affected parent, legal guardian, or eligible pupil in the event of an unauthorized disclosure." The earlier draft said only that the District decides; the procedure paragraph now describes who does what and by when. **Conversation:** Emily and Phil (11/4): the trigger should be a validated and confirmed incident, not a suspected one, because "some hiccup somewhere" is not a leak. Agreed. Seventy-two hours stays: it is the NDPA's number (Article V.4) in all eighteen TEC states and in California's version, so CHSS is bound to it wherever the NDPA is signed; state statutes are looser (New York's regulation seven days, Illinois and Connecticut thirty), and a blank invites a district's template number, often twenty-four or forty-eight. The five-business-day family-notice clock is dropped (Technical commitments tab); the division of labor and who pays stay. **af-dpa:** knowledge/sdpc/ndpa-structure.md, Arizona NDPA v1.2 Article V.4, verbatim: "the Provider shall provide notification to LEA within seventy-two (72) hours of confirmation of the incident, unless notification within this time limit would disrupt

investigation of the incident by law enforcement." The repo's reverification notes recommend keeping v1.2's broad, undefined trigger (not v2's "in violation of applicable law" qualifier), saying who notifies families, and lifting the Illinois breach-cost allocation (parent notification, credit monitoring, "legal fees, audit costs, fines").

If CHSS validates and confirms that Student Data has been accessed, acquired, disclosed, or lost without authorization, whether or not the event meets a statutory definition of breach (a "Breach"), CHSS will notify the District's privacy contact without unreasonable delay and in no event later than seventy-two hours after that confirmation, unless notification within that time would disrupt a law-enforcement investigation, by telephone and email, with the information then known: the nature of the Breach, a description of the Student Data involved, the students affected, steps taken to contain it, and a point of contact. CHSS will handle the incident under its incident response plan, update the District as the investigation proceeds, cooperate fully, and comply with any breach-notification law applicable to the District's data.

Notifying affected parents, guardians, and eligible students. Promptly after CHSS's notice, and in time to meet any deadline under the law of the District's state, the District and CHSS will agree on the affected population, the content of the notice, and the method and timing of delivery. The District decides whether notice is required and sends it, or directs CHSS to send it in the District's name; either way the notice goes out within the time required by the law of the District's state, and CHSS provides the District the list of affected students, a draft notice, and a point of contact for questions. CHSS will not notify students, parents, or the public on its own, except where law requires otherwise. CHSS will bear the reasonable costs attributable to its Breach, including parent notification, credit monitoring where offered, forensic investigation, legal fees, and regulatory fines.

A.9 Data location

Columbus City DSA: "No student data is stored outside the United States without the District's written consent." **Conversation:** Jonah (10/26): "Don't store your data in Russia, et cetera."

Student Data is stored and processed only in data centers located in the United States. CHSS will not transfer Student Data outside the United States without the District's prior written consent.

A.10 Retention, de-identification, and destruction

SDPC NDPA: Article IV "Disposition of Data" and Exhibit D (Directive for Disposition of Data): sixty days from written request; duty does not extend to de-identified data. **Columbus City DSA:** Ninety days after termination to destroy or return all educational records. **FERPA:** De-identification standard at 34 C.F.R. § 99.31(b)(1); the attribute of "reasonable determination" that identity is not personally identifiable "taking into account other reasonably available information." **Emily's architecture:** The platform already separates a "De-identification & Privacy" step (tokenization and pseudonymization for research datasets) from the identifiable warehouse. This clause makes that separation contractual. **Drafting choice:** Cell suppression at fewer than ten students is a common state-reporting threshold; it keeps aggregate results publishable without re-identification risk at small schools. After 11/4 the number lives in the technical documentation (Emily's G-07: thresholds and methods should not be contractual unless required); the FERPA standard stays in the clause. **Conversation:** Emily and Phil (11/4): sixty days stays (Luke: the NDPA's number; a blank invites forty-five). Backups: Emily's G-23 replaces "never restored," since a backup that can never be restored defeats recovery; the deletion duty follows any restored data. **Conversation:** James (10/23): keep "Agua Fria High School went from 60% on track to 72%"; delete the student-level data. Luke: "That's a different thing." **af-dpa:** knowledge/sdpc/ndpa-structure.md, NDPA v1.2 IV.5: "Provider agrees not to attempt

to re-identify De-Identified Student Data ... Provider's use of De-Identified Data shall survive termination of this DPA ... Provider agrees not to transfer de-identified Student Data to any party unless (a) that party agrees in writing not to attempt re-identification, and (b) prior written notice has been given to the LEA who has provided prior written consent." v2 4.5 adds that de-identification must "comply with either NIST de-identification standards or US Department of Education guidance." Both are adopted below. **af-dpa:** knowledge/law/ferpa.md: § 99.31(b)(2) allows coded student-level releases only for education research, with a code "not based on" the student's SSN "or other personal information" and the method kept secret; a hash of the student number is a code based on personal information. PTAC: "simple removal of direct identifiers ... DOES NOT constitute adequate de-identification." Hence the random token and the destroyed key. **af-dpa:** knowledge/law/deidentification-and-definitions.md: the captures "do not settle" a minimum cell size; PTAC uses "a minimum cell size" and "controlled rounding," and "a vendor's 'aggregate' effectiveness report with n=3 cells is PII." Ten is the drafting choice, matching common state reporting thresholds. **State law:** California Education Code § 49073.1(b)(7) requires "a certification that a pupil's records shall not be retained or available to the third party upon completion of the terms of the contract and a description of how that certification will be enforced." The certification paragraph states both, and draws the line that de-identified data is not a pupil record. **District lens:** A California district technology and privacy lead (10/27 call) confirmed that a partner may keep de-identified growth data after a contract ends "as long as we can't trace it back," and added the condition that matters: "make sure that's in any agreements you're signing, so after the fact they don't say 'you didn't tell us that.'" Her district de-identifies some data itself with a key its assessment office holds, which is the district-side pseudonym the Agreement allows in Section 6.4.

- **During the term.** CHSS retains Student Data only as long as needed to provide the Services.
- **On request.** On the District's written directive at any time, CHSS will return or destroy the Student Data specified within sixty days, on a schedule agreed with the District. The District may use the NDPA's Directive for Disposition of Data (Exhibit D) for this purpose with no further notice required.
- **On termination.** Within sixty days after the Agreement ends, CHSS will destroy or return to the District all Student Data and Screening Data, including copies held by Subprocessors, and will certify destruction in writing signed by an officer. **Pending, Emily: deletion runbook across every store (O13)** Backups are managed under CHSS's documented retention schedule and are restored only for business continuity, disaster recovery, or operational purposes; the obligations of this section continue to apply to any Student Data restored from backup, and the certificate states the date by which backups containing the District's Student Data expire.
- **Certification of non-retention.** CHSS certifies that, upon completion of the Agreement, no Student Data or Screening Data will be retained by or available to CHSS or its Subprocessors, and that this certification is enforced by the destruction process, the backup expiration, the officer's certificate, and the District's audit and evidence rights under A.13. De-identified Data and Aggregate Data are not pupil records and are governed by the next paragraph.
- **De-identified and Aggregate Data.** CHSS may create De-identified Data in accordance with NIST de-identification standards or U.S. Department of Education guidance, by removing direct and indirect identifiers and replacing the student identifier with a random token that is not derived from any student identifier or other personal information, under a key that CHSS destroys with the identifiable data. Before retaining or releasing any De-identified Data, CHSS will make and document the reasonable determination required by 34 C.F.R. § 99.31(b)(1) that a student's identity is not personally identifiable, considering direct and indirect identifiers, other reasonably available information, the cumulative risk of repeated releases, and the need for complementary suppression, and will provide that record to the District on request.

Aggregate Data is a subset of De-identified Data. CHSS may retain De-identified Data and Aggregate Data after termination to evaluate and improve the program, including analyzing Cohort outcomes over time. CHSS will not attempt to re-identify any student and will not transfer De-identified Data to any third party other than a Subprocessor unless that party agrees in writing not to attempt re-identification and the District has given prior written consent. Aggregate Data applies a minimum cell size and the other suppression methods described in CHSS's technical documentation.

- **Research and publication.** CHSS may publish findings based on De-identified Data and Aggregate Data. No publication will identify a student. CHSS will not identify the District in any publication without the District's prior written consent and will provide the District a copy of any report that includes the District's aggregate results at least fifteen business days before publication. The District may always see its own data.

A.11 Parent and eligible student rights

> **FERPA:** Parents and eligible students have rights to inspect, review, and seek amendment of education records (34 C.F.R. §§ 99.10–99.22); those rights run against the District, which the provider must support. **Columbus City DSA:** The company and District "shall establish reasonable procedures ... by which a parent, legal guardian or eligible student may review personally identifiable information on the pupil's records, correct erroneous information." **SDPC NDPA:** Article II: the provider assists the LEA in responding to parent and eligible-student requests within a stated period. **Conversation:** Emily's G-32 (11/4): the District owns FERPA's forty-five-day clock; CHSS supports it "in a timely manner." The ten-business-day figure is dropped.

Requests by a parent or eligible student to inspect, review, or correct education records are handled by the District. CHSS will provide the Student Data it holds about the student, and will correct or delete data as the District directs, in a timely manner that supports the District's compliance with FERPA and applicable law.

A.12 Use of artificial intelligence

> **Luke's experience:** The Arizona NDPA Exhibit G AI questionnaire, which Luke co-developed with the privacy leads from Mesa and Deer Valley with input from about a dozen privacy and technology professionals: how the vendor uses AI, what data goes to AI providers, whether user data trains models, and what safeguards and oversight exist. This clause answers those questions before they are asked. **Emily's architecture:** AI-assisted mapping, anomaly detection, "risk models and intervention recommendations" are in the platform design; Jonah (10/19) described AI that "can help coach the team leads." **af-dpa:** knowledge/practice/ai-dpa-clauses.md (marked in the repo as a drafting suggestion, not a standard): model-provider disclosure "by URL and date, and the country of processing," thirty days' notice before changing a model provider with a termination right; outputs "descriptive of an identifiable student are Student Data"; disclosure of any subprocessor personnel who may view prompts or outputs for abuse monitoring; outputs "require human review before use" and are not "the sole basis for any decision with legal or material effect on a student." The shortest proven binding wording is California NDPA v1.5 Exhibit G cl. 8: "Student Data ... shall not be used for training purposes or to develop synthetic and/or inferred data." **af-dpa:** knowledge/sdpc/ai-addendum-and-checklist.md lists the Arizona checklist questions this clause pre-answers: base model and provider (1.1–1.2), opt-out of AI decision-making (1.4), data shared with an AI subprocessor (4.2), whether user data trains the model (4.7), human in the loop (5.6), and query logging (5.7). **District lens:** An earlier draft's exception for "a model used solely to deliver the Services" could be read to permit training. Training and inference are now separated: no training by anyone; inferences only to deliver the Services, and treated as Student Data. **Conversation:** Jonah (GOLD, 10/30) on A.12(a): "does this prevent us from utilizing the data to make the Navigator smarter? If so we don't want that phrase." Reworded in v1.7: no model, CHSS's or a provider's, is trained on Student Data or anything derived from it; the Services may be improved with De-identified Data inside CHSS, which NDPA Article IV.5 permits (Decisions, O21).

Conversation: Emily and Phil (11/4): agreed line, no student-identifiable data trains any large language model; the Services may use approved AI and analytics for next-step planning (Emily's G-09). Emily would keep AI quiet because most standards have not addressed it; Luke: the question now arrives with every review, so answer it before it is asked. Phil: model the wording on Google's education terms. Luke drafts options and socializes them at the CIO/CTO summit 11/5. v1.8 carries the two sentences agreed on the call; the one-sentence and four-commitment alternatives are on the Technical commitments tab (O21). The four-commitment version's off switch for AI recommendations came from the October 29 text, clause (f), written to answer the Arizona questionnaire's opt-out question (1.4); it is set aside with the rest of that version. **Needs CHSS confirmation:** The model provider is named by category in A.6; its name, tier, data-use terms, and retention arrangement go in the technical documentation (M25). **District lens:** A California district technology and privacy lead (10/27 call): AI use is "not an automatic no," but she asks every vendor whether the system is proprietary or built on a third party's model, "what the AI agent looks like and what information you're putting into it," who else at the company or its maintenance contractors has access, and she asks to see the platform before signing. Clause (i) commits CHSS to those answers up front.

CHSS may use approved artificial-intelligence and data-analytics capabilities to analyze Student Data and support educational analysis, next-step planning, and intervention recommendations when those activities are part of the Services. Neither CHSS nor any Subprocessor will use Student Data, or any output derived from identifiable Student Data, to train any artificial-intelligence or machine-learning model, including any large language model; CHSS may use De-identified Data and Aggregate Data created under A.10 to evaluate and improve the Services within CHSS. **Pending, Jonah and Emily: one sentence, two, or four commitments; options drafted 11/4 (O21)**

A.13 Audit and assurance

Columbus City DSA: Annual third-party audits of security operations; District may request log data for incident investigation. **Conversation:** Jonah (10/26) listed audits among the standard terms to include; James (10/23): "Columbus City requires a security audit every three years or something like that" (the document says annually). **Drafting choice:** Evidence-on-request once a year, plus full cooperation after a breach, is the posture most CTOs accept in place of an unlimited audit right; an audit right is still offered where state law or policy demands it. **SDPC NDPA:** The TEC multi-state NDPA (version 1.0) Article V.2: once a year or after unauthorized access, on ten business days' notice, the provider allows the LEA to audit its security and privacy measures; New York's terms add an independent audit at the provider's expense if the State Chief Privacy Officer requires it, or a SOC report from the prior twelve months instead. Those terms govern wherever the NDPA is signed. **Conversation:** Emily and Phil (11/4): no SOC 2. Emily's three tiers: an annual self-assessment CHSS can share; an independent third-party audit CHSS can hire when a district requires it; SOC 2, which needs a CPA firm and quarterly maintenance, is out. Phil: the assessment is against CIS Controls v8.1 IG1. Columbus's third-party sentence acknowledged as something CHSS must be ready to meet; it is on Exhibit D-5. **af-dpa:** knowledge/sdpc/article-crosswalk-v1-2-to-v2-1.md: NDPA v1.2 Article V.2 "gives the LEA the right to audit the Provider." knowledge/GAPS.md recommends the Utah audit-evidence menu (self-assessment, questionnaire, "SOC2 or SOC3" report, or on-site review by agreement), adopted below so a district can pick the form of evidence.

CHSS assesses the security of the environment that holds Student Data at least annually against its chosen cybersecurity framework. On request, not more than once per year unless a Breach has occurred, CHSS will provide the District, subject to reasonable confidentiality and security restrictions: a summary of that assessment's findings and corrective actions; responses to the District's security questionnaire within thirty days; its current technical documentation, including the Subprocessor list; a description of its security program; and a certificate of insurance. If the District's state law or policy requires an audit right, CHSS will cooperate with an on-site or remote audit at a mutually agreed time, conducted so as not to compromise other districts' data. Where the District has executed the NDPA or accepted Exhibit E, the NDPA's audit provisions,

including any state terms, govern in place of this paragraph. Additional assurance a District requires in writing, such as an annual third-party audit, is set out in that District's entry in Exhibit D-5.

A.14 Insurance

> **Columbus City DSA:** "Your company must carry cyber liability insurance of at least $1,000,000 to cover Crisis Management and Computer System Extortion, Media and Content Liability, and Security and Privacy Liability." **San Diego CCAP:** Each party: commercial general liability $1,000,000 per occurrence / $2,000,000 aggregate; professional errors and omissions $1,000,000; other party as additional insured; certificate of insurance on request; self-insurance acceptable. **James's MOU draft:** Section Eight currently promises "reasonable liability insurance" and a certificate "including any applicable cybersecurity or data-security coverage" on request; this clause states the limits. **af-dpa:** knowledge/practice/dpa-review-checklist.md: "the NDPA has no insurance clause"; district practice research puts "$1M for directory-only, $2M+ for SIS, assessment, special education or health data," and Beaverton requires $2,000,000 per claim and aggregate "with the policy running two years past the contract." $2,000,000 is drafted; Columbus's $1,000,000 floor is satisfied. Stand's finance lead confirms the actual policy before this is sent.

CHSS maintains, and will provide certificates on request for: cyber liability insurance of at least $2,000,000 per claim and in the aggregate, covering security and privacy liability, crisis management, network extortion, and media and content liability, maintained for two years after this Appendix ends; commercial general liability of $1,000,000 per occurrence and $2,000,000 aggregate; and professional errors and omissions liability of $1,000,000 per claim. A requirement may be met through self-insurance only where CHSS documents the program and its claims-paying capacity and the District accepts it in writing. **Pending, Demian and counsel: confirm limits against Stand's certificate (O7)**

A.15 Screening Data

> **Emily's email:** Area 3 of the four the agreement must cover: "the Belonging and Skills screeners we administer, including the collection, storage, analysis, and use of student-level screening data." **PPRA:** 20 U.S.C. § 1232h; the District approves instruments and gives notice (Section 6.7). This clause covers what CHSS does with the responses. **Conversation:** Jonah (10/19): screener results feed the Navigator so the team can see that "fifteen other kids have the same profile" and deliver one intervention to all of them. Student-level screening results therefore have to be visible to the School Team.

Screening Data is collected by CHSS only after the District has approved the instruments and provided any required notice under Section 6.7. Screening Data is subject to every protection in this Appendix. Student-level screening results are visible to the 9th Grade Success Team and to CHSS coaching staff on the terms of Section 5.4; CHSS program and research staff see only De-identified and Aggregate Screening Data.

A.16 Term, termination, and survival

> **Columbus City DSA:** Term "shall be co-terminus with the contract/agreement and shall terminate when all of the student data ... is destroyed and/or returned." **James's MOU draft:** The Agreement's cure period is ten days (Section Two); thirty days is used here for data-specific breaches because remediation of a security finding usually takes longer than ten days. **District lens:** "If there is an active security problem, I cannot wait through a thirty-day cure period while access and transfers continue." An immediate suspension right and immediate termination for an incurable or repeated breach are added (Decisions, M12). **District lens:** A California district privacy lead's checklist (10/27 call) starts with auto-renewals. The no-renewal sentence makes the data term end with the agreement (Decisions, M19).

This Appendix is coterminous with the Agreement and continues until all Student Data has been returned or destroyed under A.10. Sections A.3, A.4, A.8, A.10, and A.11 survive termination. The District may suspend data transfers and CHSS's access to its Student Data immediately, by notice to CHSS's privacy contact, when the District reasonably determines that suspension is necessary to protect Student Data, and may terminate the data provisions of the Agreement on thirty days' written notice if CHSS materially breaches this Appendix and does not cure within that period, or immediately for a breach that cannot be cured or that recurs. Suspension or termination of the data provisions suspends the Services that depend on Student Data; if those Services cannot lawfully continue, the District may terminate the Agreement without penalty, and CHSS will return or destroy Student Data under A.10. This Appendix does not renew automatically; continuation of Student Data sharing beyond the Agreement's term requires a new written agreement signed by both Parties.

A.17 Governing law and State Exhibit

> **State law:** Ohio: R.C. 3319.321 (confidentiality of student records), 3319.325–3319.327 (educational records and third-party contractors), and Chapter 1347 including R.C. 1347.12 (breach notification), all named in the Columbus City DSA. California: Education Code § 49073.1 (contract requirements for digital storage and educational software) and the Student Online Personal Information Protection Act, Business and Professions Code § 22584. Arizona: Arizona NDPA Exhibit G, including the AI questionnaire. **District lens:** A California colleague shared the CETPA/Fagen Friedman & Fulfrost AB 1584 compliance checklist (10/27), the nine-item list California district counsel use to review any technology services agreement touching pupil records. Mapping each of the nine to a section of this Appendix is what a San Diego reviewer will do first, so the map is written into the exhibit. **Lewis County:** Missouri districts will supply the Missouri NDPA state exhibit through their consortium; it is listed as "to be added" rather than drafted here. **District lens:** Ohio counsel: "Ohio's definition of 'technology provider' is tied to providing a school-issued device or account. Tell me why CHSS falls within §§ 3319.325–327 when Navigator is staff-facing." CHSS adopts the protections contractually either way and leaves classification to Ohio counsel (Decisions, M15).

This Appendix is governed by the laws of the District's state. The State Exhibit attached for the District's state sets out additional required terms, including: for Ohio, compliance with Ohio Revised Code 3319.321, 3319.325 through 3319.327, and Chapter 1347 (including breach notification under R.C. 1347.12) as if CHSS were the District, whether or not CHSS falls within the statutory definition of a technology provider; for California, the nine terms required by Education Code § 49073.1(b), which this Appendix carries as follows: (1) ownership and control, A.3; (2) pupil-generated content, A.5 (none held); (3) purpose limitation, A.4; (4) parent review and correction, A.11; (5) security actions and designated, trained individuals, A.7; (6) parent notification procedure, A.8; (7) non-retention certification and enforcement, A.10; (8) joint FERPA compliance, A.2; (9) no targeted advertising, A.4(b); together with the Student Online Personal Information Protection Act, Business and Professions Code § 22584; for Arizona, Arizona NDPA Exhibit G including the AI questionnaire, the screener consent requirements of A.R.S. §§ 15-104 and 15-117, and the District's determination under Section 6.7 whether the Belonging Screener may be administered at all; and for Missouri, Massachusetts, Utah, and other states, the state NDPA exhibit where one exists.

A.18 Order of precedence

Drafting choice: Mirrors Section 5.2 of the Agreement so both documents say the same thing about which controls.

This Appendix applies in every case. If this Appendix conflicts with the Agreement, this Appendix controls as to Student Data. If the District has executed the NDPA with CHSS or accepted Exhibit E, the NDPA and its state exhibits control as to any conflict with this Appendix, and this Appendix continues to apply as a supplement for every matter the NDPA does not address.

A.19 National Data Privacy Agreement

Lewis County: A Missouri partner district's technology coordinator wrote on 10/26 that she had asked her consortium (TEC via MOREnet) and the SDPC Resource Registry to obtain an NDPA with CHSS. The NDPA will arrive whether or not CHSS writes its own appendix. **SDPC NDPA:** Exhibit E (General Offer of Privacy Terms) lets a provider extend an agreement it has signed with one LEA to any other LEA in the same state that subscribes; the subscribing LEA signs Exhibit E rather than negotiating anew. **Luke's experience:** AFUHSD extends other districts' signed NDPAs to itself through Exhibit E routinely; each vendor file holds "the DPA from another district, and then the Exhibit E attachment signed by either me or Lauren." **Drafting choice:** Naming the Provider, the Service, and Provider staff up front answers the first three questions a consortium reviewer asks and settles that coaches are inside the agreement. **Lewis County:** 10/29: TEC sent CHSS its 18-state multi-state NDPA with Lewis County C-1 as the originating district. The bracketed sentence becomes a statement of fact once it is executed. **Conversation:** James (10/26): "we are going to have to sign their data agreement. There's no negotiation there." On the 10/27 call Jonah and Emily agreed to prepare to sign version 1 of the NDPA, for its three-year review cycle, and to opt into Exhibit E; counsel reviews the text before signature. The Exhibit E sentence stays bracketed until counsel has (Decisions, O12). **af-dpa:** knowledge/sdpc/exhibit-e-general-offer.md and resource-registry.md (captured 2026-10-26): Exhibit E is "a one-signature piggyback" that extends only privacy terms, within one state, for three years from the provider's signature; a subscribing district "must deliver notice of acceptance." Registry rows are created by districts, not providers ("One row = one district + one resource"), and the originating district uploads "the signed agreement file and a standalone Exhibit E file." So CHSS's job is to sign promptly and hand the first district in each state a clean standalone Exhibit E, not to "list itself." **af-dpa:** knowledge/sdpc/ndpa-structure.md: the v1.2 "Provider" definition is "provider of digital educational software or services ... for the digital storage, management, and retrieval of Student Data," a strained fit for a coaching nonprofit; the school-official recital in Article I is the real footing, which is why Section 5.1 states it independently.

The Center for High School Success (CHSS), a program of Stand for Children Leadership Center, Inc., will execute the Student Data Privacy Consortium's National Data Privacy Agreement (NDPA), including any state-specific version and exhibits adopted in the District's state, on request from any partner district or its privacy consortium. **Pending, counsel: TEC multi-state NDPA not yet executed (O12)** CHSS is completing the multi-state NDPA offered through The Education Cooperative (TEC), which, once executed with its originating district, extends by Exhibit E to districts in Massachusetts, Maine, Colorado, Idaho, Illinois, Iowa, Kentucky, Missouri, Nebraska, New Hampshire, New Jersey, New York, Ohio, Rhode Island, Tennessee, Vermont, Virginia, and Washington. **Pending, counsel: Exhibit E general offer (O12)** CHSS expects, subject to confirmation by its counsel, to sign the General Offer of Privacy Terms (NDPA Exhibit E) with the first executed NDPA in each state and to provide the originating district a standalone copy for the SDPC Resource Registry, so that other districts in that state may subscribe to the same terms by accepting Exhibit E and delivering notice of acceptance.

For purposes of the NDPA: the **Provider** is Stand for Children Leadership Center, Inc. (CHSS program); the **Service** is the 9th grade success coaching and the data platform and dashboards that support it; **Provider staff** include CHSS coaching staff, who are bound by the agreement and trained accordingly. CHSS will sign the version of the NDPA the District's state alliance offers;

where a choice exists, CHSS prefers the version with a fixed three-year term. CHSS does not operate a student-facing application other than the Belonging and Skills screeners administered through the District's 9th Grade Success Team.

This Appendix applies in every case. Where a district has executed the NDPA, or accepted Exhibit E, the NDPA and its state exhibits control as to any conflict, and Appendix A continues as a supplement for every matter the NDPA does not address.

Exhibit D-1: Data elements

James's MOU draft: All elements from the current Section Six appear here; the change is the Required/Optional split. **James's collateral:** James's "only the data needed" list (student ID, name, grade level, course grades, attendance, discipline) with discipline moved to Optional. **Emily's architecture:** Input categories on the platform diagram: student information, grades, attendance, discipline, other optional (assessments, state tests, program participation). **Conversation:** Luke (10/19): attendance, discipline, EL, and IEP data "don't belong in rostering tools"; discipline is the element most likely to draw objections. **SDPC NDPA:** The NDPA's Exhibit B asks the provider to list every element "used, stored, or collected," including data the service itself creates; New Hampshire's terms add teacher data, scheduled in Exhibit I. The last two rows make D-1 match what CHSS will declare on the NDPA. **District lens:** A California district technology and privacy lead (10/27 call) ranks free or reduced-price meal status, special education status, and graduation date as "protected and then free-and-reduced-lunch protected," and recently refused a grant partner's request for meal data with the district attorney's backing; name, email, and ID are a lower tier. The sensitive elements are now labeled as such and never requested by default.

Element	Required / Optional	Notes
District student identifier (state identifier also requested)	Required	Stable across years; see 6.4
Student name (first, last)	Required	Visible to the 9th Grade Success Team only; see 5.4
Grade level, school, enrollment status and dates	Required	Entry and exit dates support Cohort tracking
Course enrollments by term (course code, title, section)	Required	Teacher of record optional; include any CTE, dual-credit, or pathway flag the District's course catalog carries
Course marks by grading period and final marks	Required	Include grading scale or pass/fail flag
Credits attempted and earned by term	Required	Core of the on-track calculation
Cumulative GPA	Required	Weighted and unweighted where both exist
Attendance: daily absences and tardies; period absences where available	Required	Chronic absence computed by CHSS
Summer school enrollment, completion, credits, and outcomes	Required	Where the District operates summer school and records it in the SIS

Element	Required / Optional	Notes
Demographics (race/ethnicity, gender, EL status)	Required	For subgroup reporting at the District's election
IEP/504 status; economic status (free or reduced-price meals)	Optional, sensitive	Not needed for Navigator. Many districts treat these as their most protected categories and will decline; CHSS does not ask for them unless the District elects to provide them for subgroup reporting
Discipline (incidents, referrals, outcomes)	Optional	Not required for on-track; the District elects it where an evaluation outcome depends on it **Pending, Jonah: marked Required 10/30; Optional recommended (O22)**
State assessment scores, including incoming 8th grade ELA and math scores	Required	Where the District holds them; identifies risk before the first grading period **Pending, Jonah and Tara: elements named 11/2 in place of "assessments, state test scores, program participation" (O22)**
College admissions tests (PSAT, ACT, SAT)	Optional	Where the District holds them; usually delivered by the testing company, not the SIS
Program participation: CTE pathway enrollment and completion, industry certifications, dual-credit completion	Optional	Where the District holds them; often kept outside the SIS
Date of birth	Optional	Only where identifiers are unavailable for matching
Screening Data (Belonging, Skills)	Collected by CHSS under 6.7	
Data created in the Services: intervention plans and records, team meeting notes, on-track and risk flags, software-generated suggestions	Created by 9th Grade Success Team and CHSS users	Student Data for all purposes of this Agreement and Appendix A
Staff data: names, work email, role, school, Navigator username; teacher of record where provided	Required for Navigator users	Protected under Appendix A the same way as Student Data; listed as teacher data in NDPA Exhibit I where applicable

Exhibit D-2: Automated feed

Emily's architecture: Tier 1 and Tier 2 are the two inputs the v1 platform supports (SFTP; secure file upload). **Conversation:** Tier 3 reflects Luke's preferred route (10/19): "if you use one of the top five SIS, we have an API route built out with them where you don't even have to think about it." Listed because it is the best privacy posture (no files in the middle) even though v1 does not ingest it. **Luke's experience:** Tier 2 is the "least prepared district" path from 10/23: "here's the five reports you have to run every week, put them in this spot, and here's a little Python snippet that will clean them up."

Form	How it works	Who does what	Cadence
District-run feed	The District's SIS or data warehouse exports the specified files on a schedule and transfers them to CHSS by SFTP.	CHSS provides the specification, credentials, and setup support. The District schedules the job.	Weekly during the school year; nightly where the District prefers
SIS vendor connection (where available)	The SIS vendor provides a read-only API or scheduled export directly to CHSS.	CHSS and the vendor configure it; the District authorizes it.	Nightly

Exhibit D-3: District elections and contacts

Drafting choice: Collects every per-district choice in one place so the body of the agreement is identical for every district, which is what makes an Exhibit E general offer under the NDPA workable later. The former Option A/B election became a "limits, if any" line on 10/27 when CHSS adopted standing access as the single model.

Item	District election
Privacy instrument (5.2)	□ Appendix A only □ Appendix A plus state NDPA □ Appendix A plus NDPA Exhibit E acceptance
Limits on CHSS coaching staff access (5.4), if any	□ None beyond Section 5.4 □ Meetings with the 9th Grade Success Team only □ Other: [ ]
Feed method (6.5)	□ District-run feed □ SIS vendor connection
Cohort tracking beyond 9th grade (6.3)	□ Yes □ 9th grade only
Optional elements provided (D-1)	[list]
Third parties approved to receive Student Data under Appendix A.4(f)	□ None □ [recipient, data shared]
District technical contact	[name, title, email, phone]
District privacy contact	[name, title, email, phone]
District program contact(s)	[name, school]
CHSS privacy officer (Appendix A.7)	[name, title, email, phone]
CHSS security officer (Appendix A.7)	[name, title, email, phone]

Data Onboarding milestones (January cohort)

When	What
By Dec 15	Acceptance communicated to District; the District names its technical, privacy, and program contacts as part of acceptance (6.1), announcement date determined
By mid-Jan	Onboarding call with the technical and privacy contacts; contacts confirmed.

When	What
Jan–Mar	Agreement and Appendix A (or NDPA) routed and executed, including board approval where required. Feed method confirmed; specification mapped. No Student Data moves yet.
After execution	Optional test load of current-year data; validation report; corrections.
By [30 days before Year 1 instruction]	Acceptance test passed: a full load of the Required elements, validated, with dashboards reviewed by the 9th Grade Success Team.
First day of Year 1 instruction	Feed live for the 9th grade Cohort; weekly updates.

Acceptance test. The feed passes acceptance when a complete load of the Required elements in D-1 for all participating schools is received by the automated feed, validated with no rejected files, with rejected rows and warnings below thresholds agreed in writing, and with on-track indicators reviewed by the District's technical contact against the District's own figures.

Exhibit D-4: Directive for Disposition of Data

> **SDPC NDPA:** Modeled on NDPA Exhibit D, the one-page directive a district uses to order return or destruction without further notice. Districts that execute the NDPA use NDPA Exhibit D instead. **Luke's decision:** Districts that do not use the NDPA should still have a form, so a disposition request is a form and not a negotiation (Decisions, M4).

To be completed by the District and delivered to CHSS's privacy contact. CHSS will act within sixty days and certify completion in writing.

Field	Entry
District	[name]
Scope of Student Data	□ All Student Data and Screening Data held under this Agreement □ The following only: [schools, cohorts, elements, date range]
Action	□ Destroy □ Return in [format] and then destroy
Timing	□ As soon as practicable, not later than sixty days □ On [date], not later than sixty days after it
Exclusions acknowledged	De-identified Data and Aggregate Data retained under Section 5.5 and Appendix A.10
Certification requested	□ Written certificate of destruction signed by an officer of CHSS, listing systems and backup expiration date
Authorized by	[name, title, signature, date]

Exhibit D-5: District-specific terms

Conversation: Emily and Phil (11/4): the baseline stays generic; a district that requires something in writing gets it on its own page, in its own words. Columbus City Schools is the first entry; its Data Sharing Agreement (rev. 3/17/2025) is the source for every row. **Columbus City DSA:** Item 7: "Deploy critical security patches within one week of release where reasonable and applicable ... Third party audits of security operations are conducted annually." Item 6: stored passwords "protected using salted hashes" and authentication "protected by SSL/HTTPS encryption." Breach section: the District "may request log data for end user, administrative and maintenance activity." Cyber liability "of at least $1,000,000." A COPPA warranty for data collected directly from students. **Drafting choice:** "Met by Appendix A" rows are listed so a Columbus reviewer can tick every item of the District's own form without reading the whole Appendix.

This Exhibit applies only to the District named in each entry. Where an entry conflicts with Appendix A, the entry controls for that District.

Columbus City Schools (Ohio)

Appendix A section	Columbus requirement	CHSS commitment for Columbus
A.13 Audit and assurance	"Third party audits of security operations are conducted annually."	CHSS will provide the District annually the current third-party audit reports (SOC 2 Type 2 or equivalent) for the hosting and platform providers that operate the environment holding the District's Student Data, together with the summary of CHSS's own annual assessment under A.13. **Pending, Emily and Jonah: whether the providers' reports satisfy Columbus, or CHSS commissions an independent assessment (O24)**
A.7 Vulnerabilities	"Deploy critical security patches within one week of release where reasonable and applicable."	CHSS will deploy critical security patches within one week of release where reasonable and applicable.
A.7 Logging	Log data for end-user, administrative, and maintenance activity on written request.	Met by Appendix A.7; no variation needed.
A.7 Authentication	Stored passwords protected using salted hashes; authentication protected by SSL/HTTPS encryption.	Stored passwords are protected using salted hashes, and authentication is protected by SSL/HTTPS encryption.
A.14 Insurance	Cyber liability insurance of at least $1,000,000.	Met by Appendix A.14; no variation needed.
A.10 Disposition	Destroy or return within ninety days of termination.	Met by Appendix A.10 (sixty days); no variation needed.
A.17 Ohio law	Comply with Ohio R.C. 3319.321, 3319.325 through 3319.327, and	Met by Appendix A.17; no variation needed.

Appendix A section	Columbus requirement	CHSS commitment for Columbus
	Chapter 1347 as if CHSS were the District.	
A.2 COPPA	Warrant conformity with COPPA for any data collected directly from students.	The Services collect no information online from children under thirteen; the screeners are administered by the District under Section 6.7. To the extent COPPA applies to any data collected directly from students, CHSS warrants that its collection conforms to COPPA.

Technical documentation (reference)

> **Conversation:** Emily and Phil (11/4): CHSS will maintain a supplemental technical document (systems, data flows, controls, provider list) and a data-intake guide (elements, column definitions, formats, cadence, how to send), both outside the agreement, provided to a district that asks. Luke sends samples of both before the Friday 11/6 review. The system specifications an earlier draft carried as Attachment 1 seed the first. **Needs CHSS confirmation:** Every statement in the technical documentation is confirmed true today or given a date before it goes to a district (O4).

CHSS maintains, outside this Agreement: (1) technical documentation describing the systems, data flows, security controls, Subprocessors, and procedures that implement Appendix A; and (2) a data-intake guide for the District's technical contact, describing the file formats, column definitions, validation rules, and transfer steps for the feed in Exhibit D-2. Both are dated, kept current, and provided on request under Appendix A.13. Neither creates obligations beyond those stated in Appendix A. **Pending, Emily: first dated version of the technical documentation (O4)**